DIVISION BENCH **ITEM NO. 112**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA NO.28/2023 IN
CP (CAA) No.05/ALD/2023 IN CA (CAA) No.9/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 25th July, 2023

Attendance-Cum-Order Sheet of the Hearing

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL HEARING:

Sh. Saurabh Khanna with Sh. Saurabh Kumar, Advs. : *For the Petitioner Companies*
Sh. Shivendra Bahadur Singh, CGSC : *For the ROC*
Sh. Rajneesh Kumar Singh, O.L., Alld. : *For the O.L., Alld./ RD(NR)*

ORDER

CA NO.28/2023

Ld. Counsel for the Petitioner Companies, Ld. CGSC for the ROC present and Learned Official Liquidator in person present.

1. This application has been filed on behalf of the petitioner companies seeking amendment of the scheme, whereby the transferee company is sought to be transformed from Private Limited Company to Public Limited Company enhancing the authorized share capital.

2. Ld. Counsel representing the petitioner seeks two weeks time to cite judicial precedents as to whether at this point of time when the second motion petition has been filed after approval/ disposal of the first motion petition, where certain meetings were directed to be held, can the petitioners be permitted to amend the scheme to this substantial extent where the status of the transferee company itself is changed from Private Limited to Public Limited.

3. Let the needful be done within the aforesaid stipulated period.

4. The matter to come up for further hearing on 11th August, 2023.

-Sd- ***-Sd-***
(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

25th July, 2023
Kavya Prakash Srivastava
(Stenographer)